

Salesforce and IBM Global Reseller Agreement**Participation Attachment**

Reference is made to that certain Salesforce-IBM Global Reseller Agreement dated October 15th, 2020 (the "Reseller Agreement"). This Participation Attachment ("PA") is entered into by and between IBM Global Services España S.A. (IBM or an affiliate thereof, "Buyer") and Salesforce Systems Spain, S.L. (SFDC or an affiliate thereof, "Seller"). This PA adopts and incorporates by reference all of the terms and conditions of the Reseller Agreement and any attachments thereto ("Attachments") in effect as of the date of this PA (exclusive of any Participation Attachments) (hereinafter the "Existing Agreement"). This PA is effective as of the later of the dates beneath the parties' signatures below (the "Effective Date"). Except as otherwise set forth herein, the terms of the Existing Agreement shall apply to this PA. Capitalized terms used herein and not otherwise defined have the meanings set forth in Existing Agreement.

By entering into this Participation Attachment, a Reseller Authorized Affiliate or an Affiliate of SFDC (as applicable) agrees to be bound by the terms of the Reseller Agreement as if it were an original party thereto.

Using this PA, IBM may order Services available from Seller in accordance with, and subject to, the terms and conditions of this PA and the Existing Agreement. This PA and the Existing Agreement are the complete agreement regarding transactions hereunder.

This PA automatically incorporates any future amendments to the Existing Agreement and Attachments. Such amendments will be made a part of this PA to the extent that the amendments do not conflict with the terms of this PA, unless otherwise agreed to in writing by the parties to this PA.

The following terms and conditions apply to transactions performed entirely within Spain only and amend the other provisions of this agreement to bring the conduct of the parties' transactions into conformity with local law and practice.

1. Governing Law:

This Agreement shall be governed by the laws of Spain. Any dispute arising out of or in connection with the interpretation of this Agreement will be settled under the exclusive jurisdiction of the Courts of Madrid, and the parties waive the right to resort to any others.

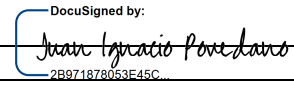
2. Invoicing:

Section 7.1(c) of the Existing Agreement shall be deemed to be deleted and substituted as follows:

"Notwithstanding anything to the contrary in the Agreement, SFDC shall submit all invoices for services provided under this PA and the Existing Agreement using the IBM Web Order and Invoice Tool or the IBM Ariba invoicing tool in replacement of the first one (the "Portal(s)"), provided that: (1) IBM shall maintain an individual as a single point of contact with whom SFDC may interact (including to alert of problems with the Portal, where applicable) for billing and invoicing matters; and (2) if IBM does not deliver to SFDC, and input into the Portal, a valid purchase order (only to the extent required) prior to the date that SFDC otherwise would have sent an invoice by mail and/or email ("Invoice Date"), such invoice shall be deemed received by IBM as of the Invoice Date set forth in the invoice, and in any event, the period for payments due under the Existing Agreement shall commence as of the applicable Invoice Date, and such payment period shall not restart based on questions or issues raised by either party during the payment period, unless in course of the process described by Section 7.5 "Payment Disputes". In the event that SFDC's receipt of IBM payments averages more than 10 days past due for all Portal invoices submitted in any rolling 6 month period beginning as of the Effective Date then SFDC shall not be required to submit further invoices to IBM using the Portal.

The terms of the Existing Agreement and any amendments or addenda thereto shall prevail over any conflicting or inconsistent terms in any agreement required of the Seller to access and use the Portal."

In the event of any conflict in the terms of the Existing Agreement, the order of precedence will be: (i) this PA; (ii) the Reseller Agreement inclusive of any and all Attachments (excluding any Participation Attachments) in effect as of the date of this PA. In the event that the Existing Agreement is terminated, the terms and conditions of this Participation Attachment shall survive such termination and remain in effect for purposes of this Participation Attachment only.

ACCEPTED AND AGREED TO:		ACCEPTED AND AGREED TO:
_____		_____
By: IBM GLOBAL SERVICES ESPAÑA, S.A.		By: SALESFORCE SYSTEMS SPAIN, S.L.
Buyer Signature _____ Date _____		Seller Signature _____ Date _____
DocuSigned by:  2/15/2021 22BC3100A1A840C		DocuSigned by:  1/20/2021 2B971878053F45C...
Printed Name Rafael Frías Sánchez		Printed Name Juan Ignacio Povedano
Title & Organization		Title & Organization
Procurement Manager		Senior Account Partner
Buyer Address		Seller Address
Calle Mar Adriático 2. 28830 San Fernando de Henares		Madrid, Spain